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SECTOR AT A GLANCE

Social Security and Welfare Initiatives for Women Workers and Elimination of Child Labour

2023-Skilling, Livelihoods
and Labour Welfare-SAG-10

Skilling, Livelihoods and Labour Welfare Sector in India

Sector at a Glance

Social Security and Welfare Initiatives for Women Workers and Elimination of Child Labour

Skilling, Livelihoods and
Labour Welfare Sector in India

The 'Sector-at-a-Glance' provides an easy-to-read overview and basic understanding of a sector, sub-sector or thematic area. The facts and insights on the sector are supported by relevant data and best practices from credible Government and multilateral sources. The document covers the structure, key trends, opportunities and challenges, Government initiatives, and the way forward for the sector.

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Overview

In India, social security and welfare initiatives for women workers and the elimination of child labour have always been critical priorities for the Government at the central and state levels.

While women are actively breaking barriers to enter traditionally male-dominated fields, the issues relating to gender disparity, gender-based discrimination, equal opportunities and wage parity still exist. Despite the implementation of several Government initiatives and corporate policies, there still exists a difference in the men and women. As per the latest Annual Periodic Labour Force Survey ('PLFS') report, the Male Labour Force Participation rate ('MLFPR') and Female Labour Force Participation Rate ('FLFPR') for all ages are 56.20% and 27.80%, respectively¹.

According to the ILO Modelled Estimates and Projections database, February 2024, India stands at 165th position out of 187 countries in terms of FLFPR.²

Having said that, various policy and programmatic interventions and a multi-stakeholder approach for enhancing women's participation in the economy may help boost FLFPR.

Another pressing issue for India and several other countries, especially in the Global South, is child labour. Although India has managed to largely address this issue, the challenge of child labour still persists in some areas. Child labour needs to be addressed as a grave national concern, as it deprives children of their right to education and well-being. It is common to witness children from low-income households participating in activities such as working in fields or other low-paying jobs to contribute to their families, which lead them to face barriers in educational opportunities and increased health challenges.

India has been making efforts to eliminate child labour in the recent years, which may be seen by way of an improvement in Gross Enrolment Ratios ('GER') in schools and a decline in the school dropout rates. According to the press release published by the Ministry of Finance, during the FY22, school enrolment stood at 26.5 crore children with 19.4 lakh additional children enrolled in primary to higher secondary levels.³ However, there is a need for unwavering commitment towards prohibiting child labour by strictly enforcing existing legislation. Establishing an environment that is conducive to fostering education and the well-being of children is essential. Additionally, raising awareness among communities about the detrimental effects of child labour and advocating for the elimination of child labour are important steps that need to be taken.

By adopting the aforementioned approaches, India can achieve the goal of eliminating child labour, and create a brighter and more secure future for its youth.

Social Security and Welfare Initiatives for Women Workers

The Constitution of India has enacted several provisions supporting the social security and welfare of women workers. Article 39(a) of the Constitution of India provides that the state shall direct its policy towards securing the right to an adequate means of livelihood for both men and women equally. Article 39(d) further provides that the state shall direct its policy towards securing equal pay for equal work for both men and women. Article 42 further provides that the state shall make provision for securing just and humane conditions of work and for maternity relief.

The intent of the Constitution of India has been further elaborated through implementation of various legislative measures and welfare initiatives. Legislative measures such as the Factories Act, 1948, provides necessary sanitation facilities to be built for women workers at their workplace. Further, the Maternity Benefit Act, 1961, was enacted to ensure maternity support such as paid leaves and childcare facilities, while fostering a supportive environment for women in the workforce. In 2017, the Government introduced the Maternity Benefit (Amendment) Act, 2017, enhancing the paid maternity leave from 12 to 26 weeks for the first two children. Additionally, 12 weeks of paid leave is also extended to adopting and commissioning mothers. The employers, subject to mutual agreement, have the option to allow female employees to work from home after the expiry of the maternity leave. Furthermore, the Sexual Harassment of Women at Workplace (Prevention, Prohibition and Redressal) Act, 2013 ('POSH Act'), further protects women against workplace sexual harassment and ensures effective redressal of complaints of sexual harassment.

¹[Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2022-June 2023\).](#)

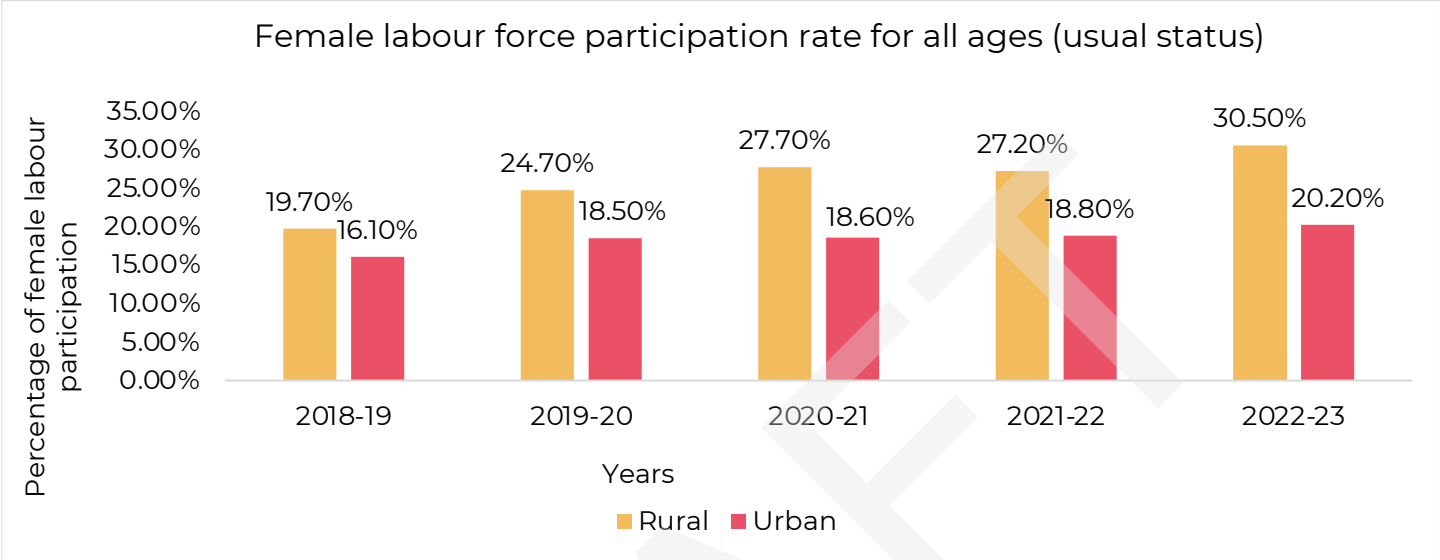
²[International Labour Organization, ILO Modelled Estimates and Projections database \(ILOEST\) \(06 February 2024\).](#)

³[Ministry of Finance, Press Information Bureau \(31 January 2023\).](#)

Besides the above, various schemes and initiatives exist such as Kasturba Gandhi Balika Vidyalaya and Beti Bachao Beti Padhao schemes for enhancing girls' education or Seekho Aur Kamao, USTTAD and Nai Manzil for skill development, which reserve at least 30% seats for female trainees⁴ and ensure favourable working hours for women workers. Schemes such as Mahila Samridhhi Yojana, Mahila Shakti Kendra and PM Mudra Yojana for Women/ Mahila Udyami Yojana are among Government-led policies for promoting women entrepreneurship in India.

Additionally, keeping in mind the larger objective of supporting the social security and welfare of women workers, the Government has also introduced four new labour codes, i.e., Code on Social Security 2020, Occupational Safety, Health and Working Conditions Code 2020, Industrial Relations Code 2020, and Code on Wages 2019. These legislative measures and welfare initiatives in turn have promoted and helped in increasing the FLFPR.

Figure No. 1



Source: Annual PLFS Report 2018-19, 2019-20, 2020-21, 2021-22 & 2022-23 ⁵

Figure No. 1 illustrates the increase in the FLFPR in both rural and urban areas from 2018-19 to 2022-23, which is indicative of changing dynamics in labour force participation for women. The data indicate that, in rural areas, the FLFPR increased to 30.50% during 2022-23 vs 19.70% in 2018-19. Similarly, in urban areas, the FLFPR was 20.20% in 2022-23 vs 16.10% in 2018-19. **Although there has been an increase in FLFPR in recent years, however, the FLFPR remains low compared to the MLFPR.**

It is further noted that the 2030 Agenda for Sustainable Development⁶ emphasises the critical importance of gender equality for achieving the Sustainable Development Goals (SDGs), underscoring the urgency of closing gender disparities.

In pursuit of SDG5, which aims to achieve gender equality, the Government has endeavoured to empower women across the nation by bridging gender disparities in all aspects of social, economic and political life. Initiatives such as the Working Women Hostel Programme and the National Crèche Programme exemplify these efforts.

Elimination of Child Labour

The Constitution of India has enacted several provisions supporting the elimination of child labour. Article 23 of the Constitution of India forbids any form of forced labour in India. Further, Article 24 provides that children aged under 14 years cannot be employed to perform any hazardous work. Furthermore, Article 39(e) prohibits abuse of 'the health and strength of workers, men and women, and the tender age of children'.

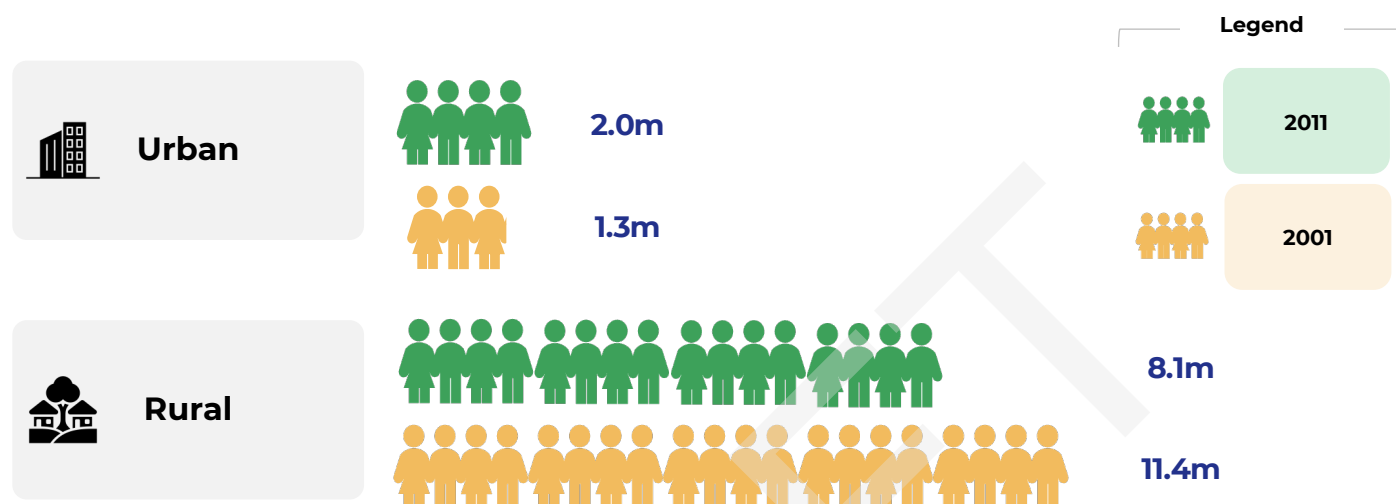
Additionally, the Child Labour (Prohibition and Regulation) Act, 1986, prohibits children aged below 14 years from working in hazardous environments. In 2016, the Government amended these regulations through the Child Labour (Prohibition and Regulation) Amendment Act, 2016, extending the prohibition of employment for individuals under the age of 14 years and restricting those aged between 14 to 18 years from engaging in specified hazardous occupations and procedures.

⁴[Ministry of Minority Affairs, Press Information Bureau \(10 August 2023\).](#)
⁵ [Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2018-June 2019\)](#)
[Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2019-June 2020\)](#)
[Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2020-June 2021\)](#)
[Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2021-June 2022\)](#)
[Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2022-June 2023\)](#)
⁶[Dashboard, Department of Economic and Social Affairs, United Nations.](#)

In furtherance of eliminating child labour, India has successfully ratified the two major conventions, namely, the Minimum Age Convention, 1973 (No. 138) and the Worst Forms of Child Labour Convention, 1999 (No. 182) on 13 June 2017.

It is to be noted that the initiatives taken by the Government in the recent years have alleviated child labour, as depicted in Figure No. 2. However, comprehensive strategies by the Government may continue to help in elimination of child labour.

Figure No. 2: Total number of working children (aged 5–14 years; in millions)



Source: ILO Report (based on Census Data 2001 and 2011)⁷

Figure No. 2 illustrates that the number of children (aged 5–14 years) engaged in work in rural areas of India decreased from 11.4m to 8.1m between 2001 and 2011. In contrast, the numbers increased in urban areas, from 1.3m to 2m, during the same period as per an International Labour Organisation ('ILO') report (based on Census 2001 and 2011 data).

In 2016, an analysis by V.V. Giri National Labour Institute in collaboration with United Nations Children's Fund ('UNICEF') on the 2011 Census data with respect to the district level incidence child labour was done, where 32 hotspots were in the country that reported more than 8.9% child workers. Most of the hotspot districts are in the states of Himachal Pradesh (6 districts), Nagaland (5 districts), Rajasthan (4 districts) and Chhattisgarh (4 districts). 3 districts in Nagaland, namely Peren (32.3%), Longleng (32.2%) and Mon (25.6%), report the highest incidence of child labour in the country.

Given the magnitude of child labour, Hyderabad in Telangana and Jalor in Rajasthan stand out as hotspots. In rural India, most of the hotspots are found in the states of Himachal Pradesh (6 districts), Chhattisgarh (5 districts), Nagaland (5 districts), and Rajasthan (2 districts). 2 hotspots each were also identified in Manipur, Madhya Pradesh and Jammu and Kashmir. Mizoram, Jharkhand, Odisha and Karnataka also have a hotspot district each.

In terms of magnitude, 3 districts reported alarming numbers of children engaged in paid employment, i.e. Jalor and Dhaulpur in Rajasthan and Janjgir-Champa in Chhattisgarh. Apart from these, 4 other districts rank higher among hotspots, namely Dhaulpur in Rajasthan, Jhabua and Alirajpur in Madhya Pradesh and Koraput in Odisha. In urban India, Peren district in Nagaland and Hyderabad in Telangana stand out as the striking hotspots. Considering the magnitude of prevalence of child labour, Hyderabad ranks highest in urban India, followed by Agra and Bareilly in Uttar Pradesh⁸.

The Government had established the National Child Labour Project ('NCLP') in 1988 with an objective to eliminate all forms of child labour. Given the above analysis, the Government has taken few more initiatives to eliminate child labour such as Platform for Effective Enforcement for No Child Labour ('PENCIL') portal⁹ and a toll-free helpline i.e. CHILDLINE 1098.

⁷ [International Labour Organization, Child Labour in India.](#)

⁸ [V.V. Giri International Labour Institute, State of Child Workers in India](#)

⁹ [Dashboard, Platform for Effective Enforcement for No Child Labour](#)

Sub-Sectoral Trends

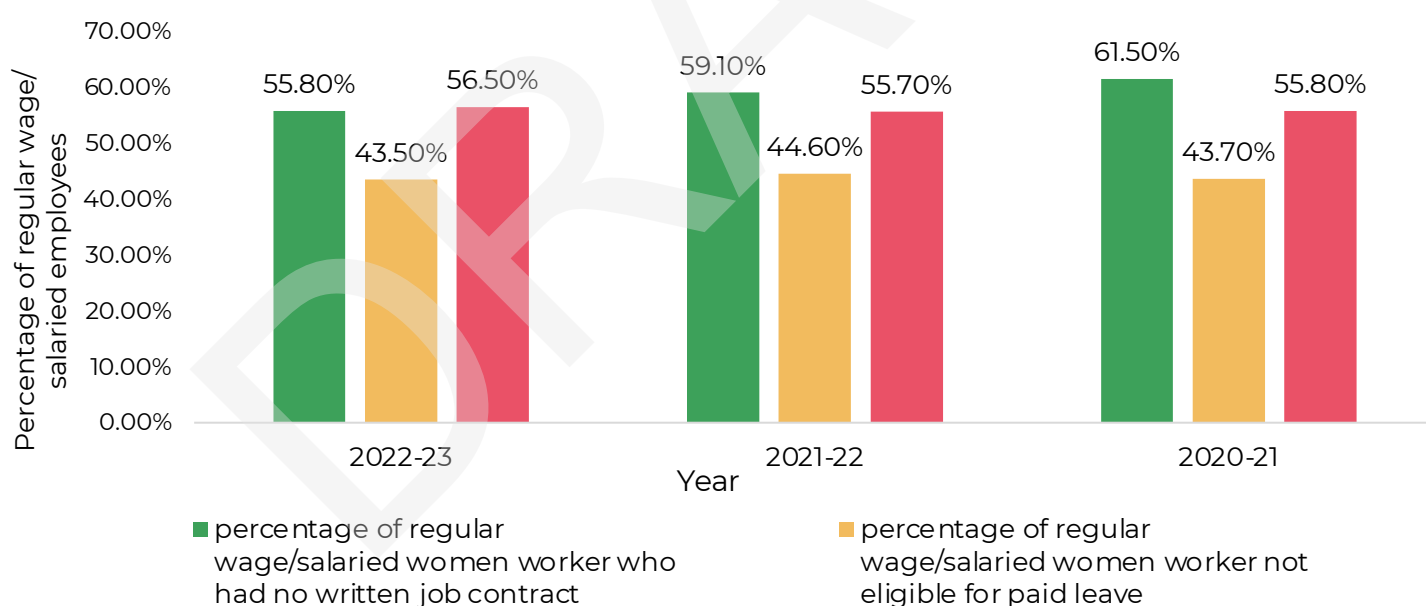
Social Security and Welfare Initiatives for Women Workers

Women working in the non-agricultural sector often face issues related to employment without a written contract, not being eligible for paid leaves or specified social security benefits. The absence of written contracts and ineligibility for paid leave and social security benefits not only compromises job security but also hampers the overall well-being of women workers. It is important to understand the status of such women working in the non-agricultural sector.

Further, it is important to track the number of complaints registered for sexual harassment at workplace under the POSH Act for addressing workplace safety and fostering a favourable work environment. The significance of establishing a better mechanism to curb sexual harassment at workplace lies in acknowledging and addressing the pervasive issue of sexual harassment, promoting transparency and creating mechanisms for reporting and redressal. By monitoring and addressing these complaints, organisations and authorities can establish workplaces that are safe and supportive for all women workers, thereby contributing to a more inclusive and equitable professional landscape.

It is further important to examine the status of the gender pay gap for identifying and rectifying disparities, promoting workplace equity and ensuring fair compensation practices. By addressing the gender pay gap, organisations can enhance diversity and inclusion, improve overall workforce satisfaction and contribute to a more just and equitable society. Monitoring these trends over time is essential for evaluating the effectiveness of initiatives aimed at reducing gender-based wage disparities and fostering a more balanced and equitable work environment.

Figure No. 3: Status of regular wage/salaried workers in non-agriculture sector – no written job contract, not eligible for paid leave and not eligible for the specified social security benefits



Source: Annual PLFS Report 2020-21, 2021-22 & 2022-23¹⁰

Figure no. 3 illustrates a concerning trend in the employment conditions of regular wage/ salaried women workers for the past three years. There has been a slight improvement in the percentage of women with no written job contract, decreasing from 61.50% in 2020-21 to 55.80% in 2022-23. However, a significant portion of these women continue to work without the security of a written job agreement.

¹⁰[Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2020-June 2021\)](#)

[Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2021-June 2022\)](#)

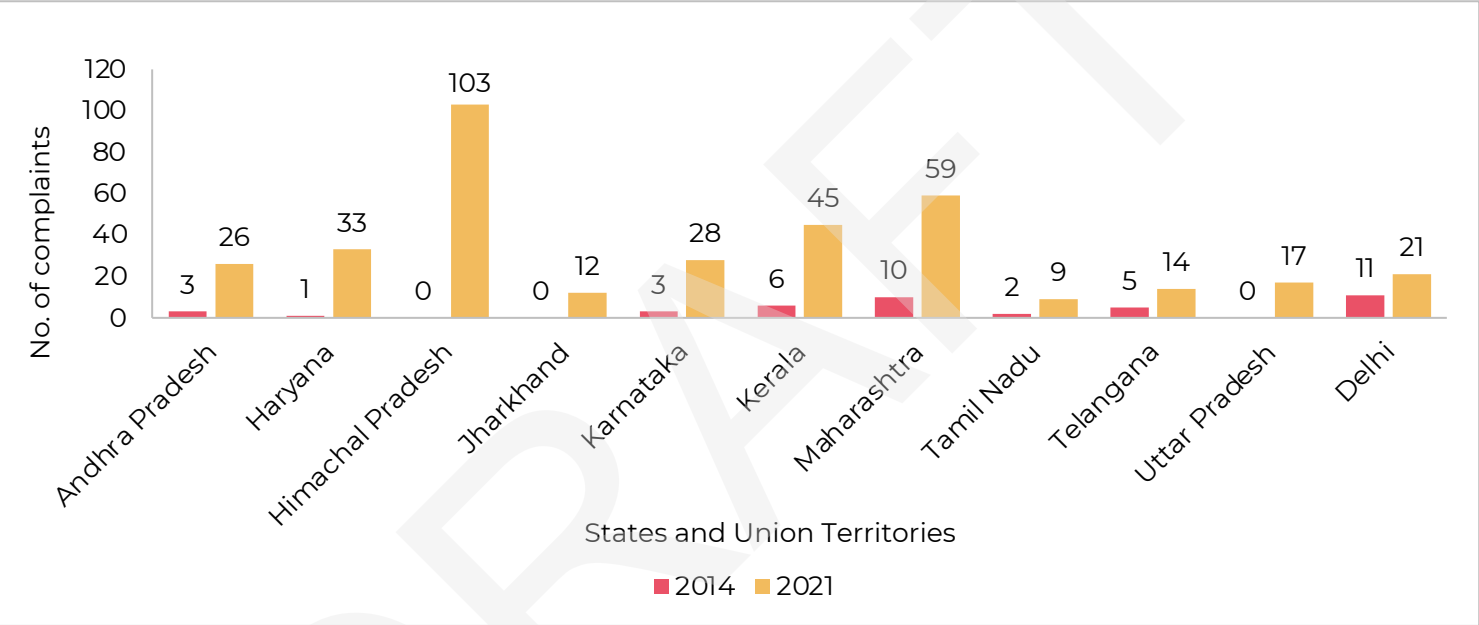
[Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2022-June 2023\)](#)

Another crucial aspect is the limited access to paid leave. While there is a marginal decrease from 43.70% in 2020–21 to 43.50% in 2022–23, a substantial proportion of regular wage/ salaried women workers still lack the entitlement to paid leave. This raises concerns about their overall job security and well-being.

The data emphasise a persistent issue of inadequate social security benefits for a considerable portion of these women. Over half, 56.50% in 2022–23, are not eligible for any specified social security benefit, indicating a substantial vulnerability in terms of financial and health protection.

In summary, despite some minor improvements in specific areas, the overall employment conditions for regular wage/ salaried women workers in the non-agricultural sector(having no written contract) appear precarious. Efforts are required to address the lack of written job contracts and the inadequate provision of social security benefits in order to ensure fair and secure working conditions for this demographic.

Figure No. 4: Number of complaints registered for sexual harassment at the workplace in select states and union territories under the POSH Act



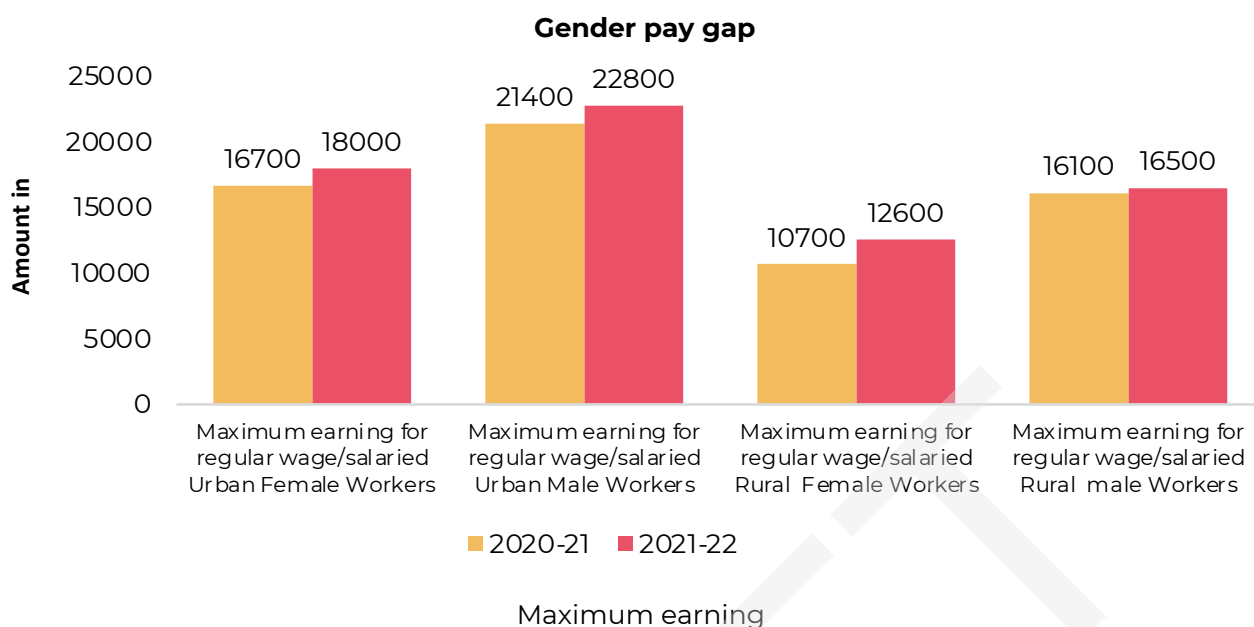
Source: National Crime Records Bureau Website¹¹

Figure No. 4 illustrates the no. of complaints registered for sexual harassment at workplace under POSH Act and also reveals noteworthy variations across selected states and union territories. The above figure depicts, Andhra Pradesh experienced a significant rise from 3 cases in 2014 to 26 cases in 2021, while Haryana showed a rise from 1 case to 33 cases during the same period. Himachal Pradesh, which reported no cases in 2014, witnessed a substantial rise to 103 cases in 2021. Similarly, Jharkhand, Karnataka, Kerala, Maharashtra, Tamil Nadu, Telangana and Uttar Pradesh displayed varying trends in reported cases.

These increase in number of complaints may indicate a growing recognition of the importance of reporting sexual harassment and a willingness among victims to step forward. Significant amount of work is still needed to tackle sexual harassment in workplaces across India. This situation underscores the importance of ongoing efforts to raise awareness, improve reporting mechanisms and implement tailored preventive measures in each state, as per the data highlighted on the National Crime Bureau website.

¹¹ [National Crime Records Bureau, Data on Sexual Harassment at Workplace \(2014\)](#) & [National Crime Records Bureau, data on Sexual Harassment at Workplace \(2021\)](#)

Figure No. 5: Status of gender pay gap for FY 2020–21 and 2021–22



Source: Annual PLFS Report 2020–21 and 2021–22¹²

Figure No. 5 illustrates significant gender pay disparities among regular wage/salaried workers in both urban and rural areas for 2020–21 and 2021–22.

In 2020–21, urban male workers earned a maximum of INR 21,400, whereas their female counterparts earned only INR 16,700, highlighting a considerable gender pay gap of INR 3,700 in urban areas. Similarly, in rural areas, during the same period, male workers earned a maximum of INR 16,100, whereas female workers earned just INR 10,700, indicating a substantial gender pay gap of INR 5,400 in rural regions.

The gender pay gap persisted and even widened in some cases in 2021–22. In urban areas, male workers earned a maximum of INR 22,800, whereas female workers earned INR 18,000. This marked a gender pay gap of INR 4,800, higher than the gap in the previous year. In rural areas, male workers earned a maximum of INR 16,500, whereas female workers earned INR 12,600, indicating a gender pay gap of INR 3,900, significantly lower than the previous year.

These disparities are concerning, as they indicate that women earned less than their male counterparts in both urban and rural areas during both years. Gender pay gaps have far-reaching implications, including economic inequality, reduced financial independence for women and perpetuation of gender-based discrimination.

¹² [Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2021-June 2022\)](#)
[Ministry of Statistic and Programme Implementation, Periodic Labour Force Survey \(July 2022-June 2023\)](#)

Elimination of Child Labour

The sub-sectoral trends delve into various facets of child labour in India, such as an analysis of type of work children are engaged in, study of gender-specific patterns, analysis of status of major states in terms of cases registered under Child and Adolescent Labour (Prohibitions and Regulation) Act, 1986, etc. These trends emphasise the need for Government interventions based on specific sectors and evolving dynamics. The data draw attention for the policymakers in formulating comprehensive approaches, including building legal frameworks and rehabilitation programs such as NCLP, and checking the status of initiatives under the PENCIL Portal.

Overall, the goal is to systematically elimination of child labour, address regional variations and ensure uniform protection for all children, with a focus on education and rehabilitation.

Figure No. 6: Distribution working children by the type of work they are engaged in

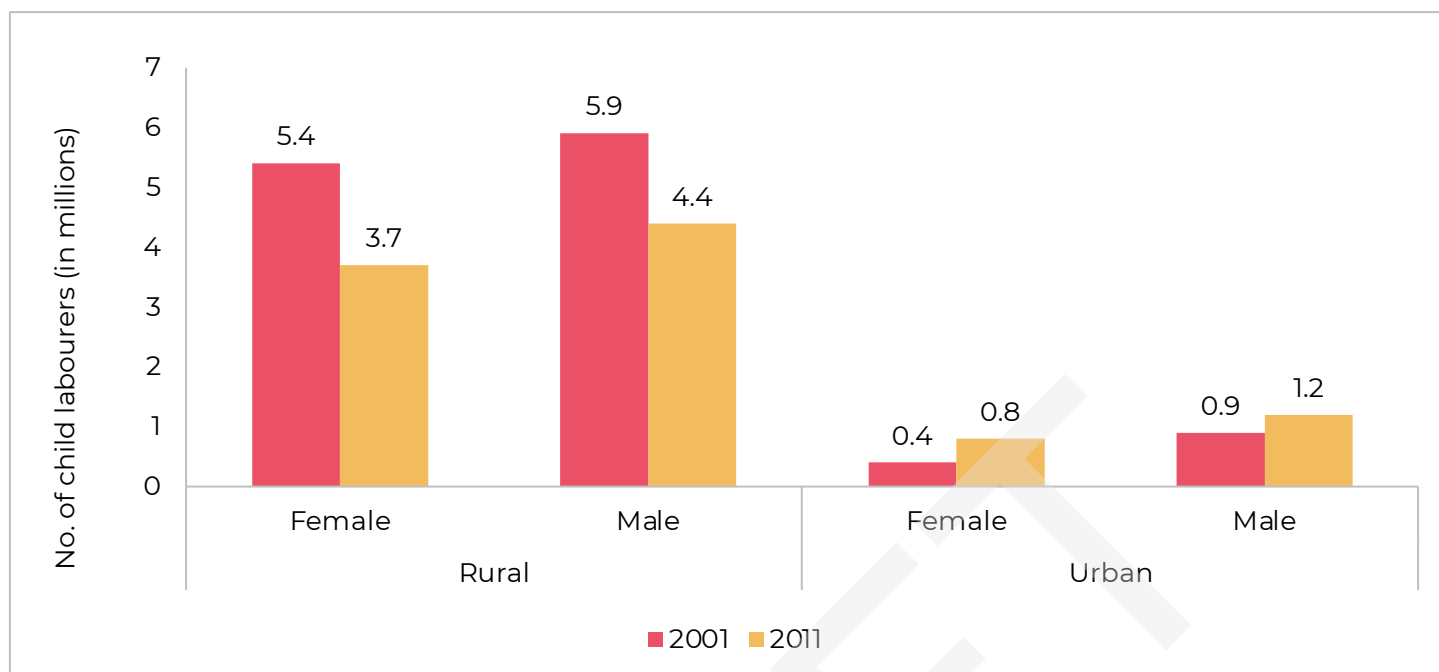


Figure No. 6 illustrates that a significant majority of children are involved in agriculture-related occupations. Notably, 32.9% children work as agricultural labourers and 26% in cultivation, indicating active participation in agricultural production. In household industries, 5.2% of children are engaged in work, encompassing activities such as weaving, crafting, etc. The 'Other workers' category, representing 35.8%, includes diverse tasks such as street vending and construction jobs, highlighting the hazardous nature of the work.

Overall, the data emphasise the widespread occurrence of child labour in various industries, especially agriculture and domestic sectors. These statistics underscore the urgency for comprehensive initiatives, such as stricter enforcement of child labour regulations, access to quality education, awareness campaigns and support for families to improve their financial situations. Addressing child labour requires a multifaceted strategy prioritising the rights and welfare of these vulnerable young individuals.

¹³ [International Labour Organization, Child Labour in India.](#)

Figure No. 7: Status of child labour patterns across gender in both rural and urban areas between 2001 and 2011



Source: UNICEF Report¹⁴

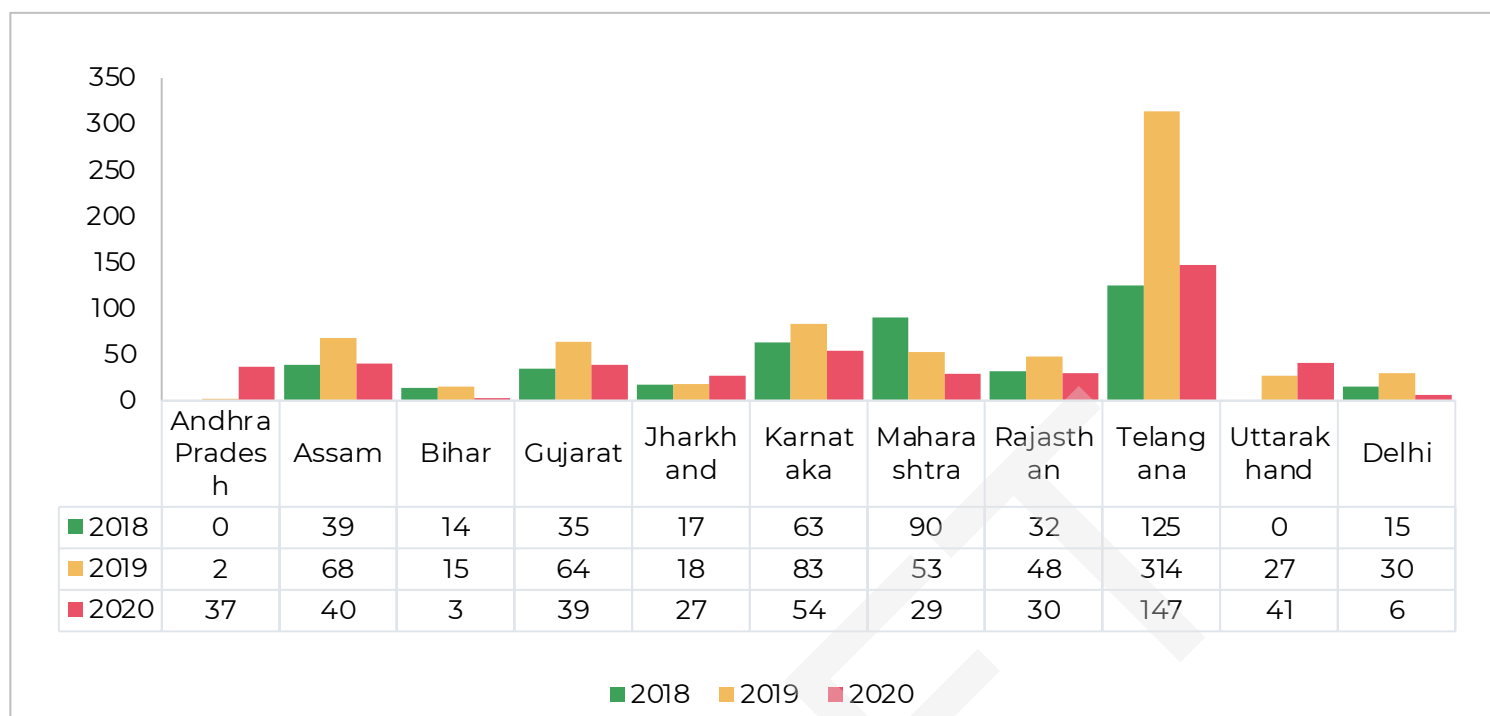
Figure No. 7 illustrates a shift in child labour patterns across gender in both rural and urban areas between 2001 and 2011. On the positive side, the data illustrate that the number of female working children in rural areas decreased from 5.4m in 2001 to 3.7m in 2011. Similarly, the number of male working children decreased from 5.9m to 4.4m during this period. These reductions indicate progress in curbing child labour in rural regions. However, both male and female children are increasingly involved in child labour in urban areas: 0.4m young girls and 0.9m young boys in urban areas worked as child labourers in 2001. These numbers rose to 0.8m and 1.2m, respectively, by 2011.

Although the numbers are relatively low, this change may point to the complexity of urban labour marketplaces, where vulnerable children may still be drawn into unregulated or dangerous jobs because of diverse social and economic circumstances.

Overall, the data portray a complex picture. While positive strides are observed in reducing child labour in rural regions, urban areas exhibit a modest increase, which needs to be addressed. The statistics highlight the ongoing need for targeted regulations, increased access to education and social support networks and enhanced awareness of the detrimental effects of child labour on children's development and society at large.

¹⁴ V.V. Giri International Labour Institute, State of Child Workers in India

Figure No. 8: Status of major states in terms of cases registered under the Child and Adolescent Labour (Prohibitions and Regulation) Act, 1986



Source: Press Information Bureau Website¹⁵

Figure No. 8 illustrates the status of major states in India regarding cases registered under the Child and Adolescent Labour (Prohibition and Regulation) Act, 1986, over three years: 2018, 2019 and 2020.

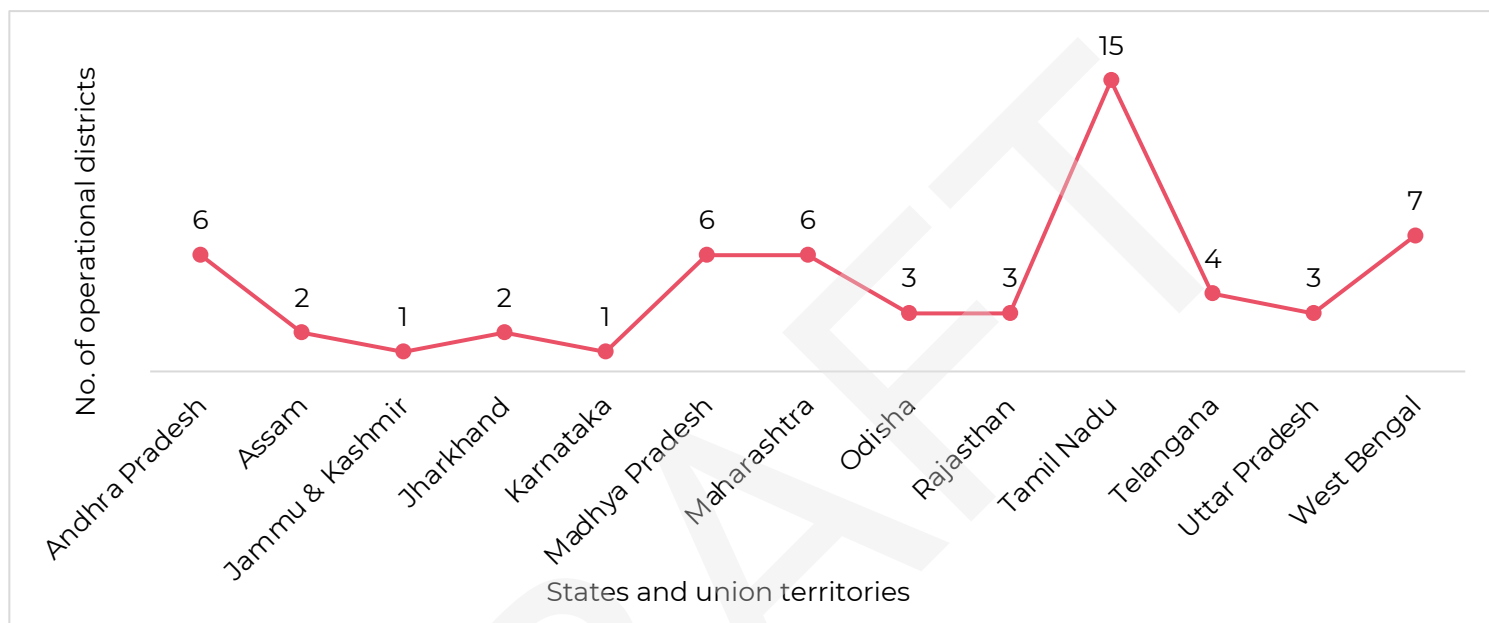
The numbers highlight fluctuations in reported cases across different states during this period. Notably, Telangana exhibited a steep increase from 125 cases in 2018 to 314 cases in 2019, before decreasing to 147 cases in 2020. This pattern might reflect improved reporting mechanisms and awareness campaigns, but it also underscores the persistent challenge of child labour in the region. In Karnataka, the number of cases registered increased from 63 to 83 between 2018 and 2019 but dropped to 53 in 2020. Maharashtra and Gujarat exhibited a downward trend in the number of cases registered over the three years. Maharashtra had 90 cases in 2018, which decreased to 53 in 2019 and further to 29 in 2020. Similarly, Gujarat reported 35 cases in 2018, 64 in 2019 and 39 in 2020. These reductions might signify successful interventions in curbing child labour, although sustained efforts are needed to maintain this progress. Other states, including Andhra Pradesh, Assam, Bihar, Rajasthan and Delhi, showed fluctuations in the number of registered cases during the three years, which could be attributed to various factors such as stricter enforcement of legislation, awareness and changing socioeconomic conditions. Uttarakhand initially reported zero cases in 2018 but saw a rise to 27 cases in 2019 and further to 41 cases in 2020, indicating the emergence of the issue in the state.

In conclusion, the data showcase a diverse landscape of child labour cases across major states in India. While some states demonstrate improvements, others continue to grapple with the challenge of child labour. This highlights the need for consistent and comprehensive efforts to combat child labour, including strengthened enforcement of laws, awareness campaigns and programmes focused on education and socioeconomic upliftment.

¹⁵ [Ministry of Labour & Employment, Press Release Bureau \(21 March 2022\)](#)

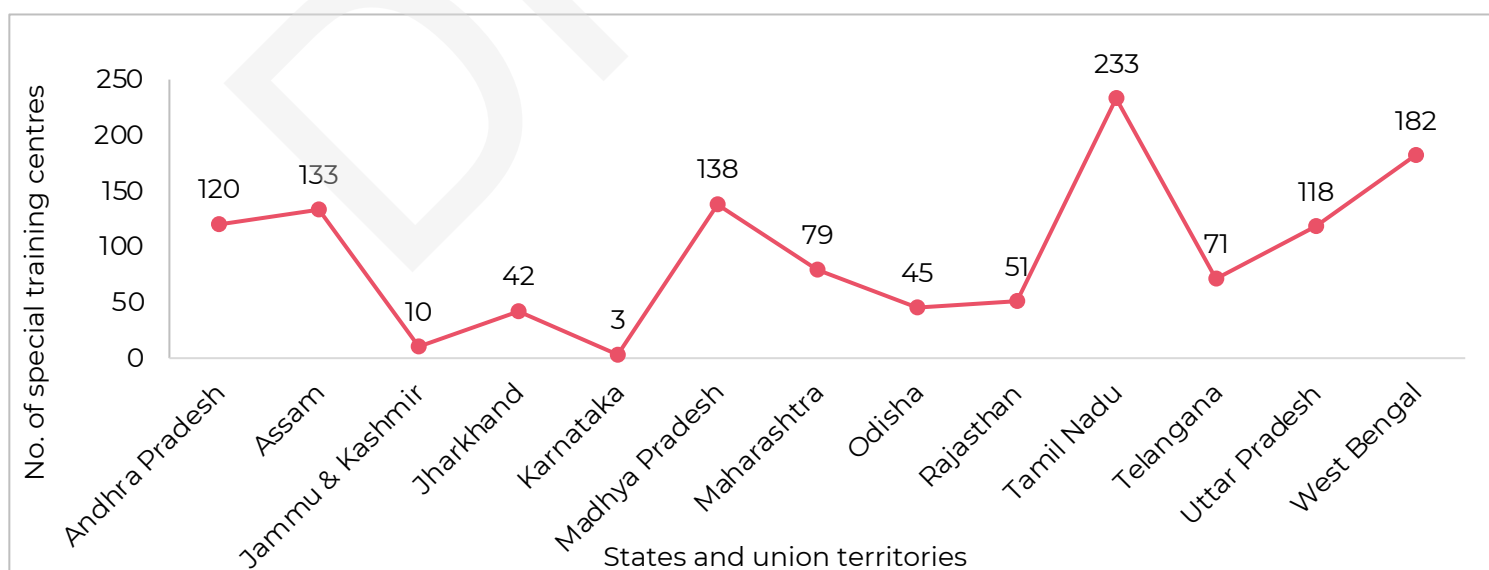
d) Figure Nos. 9 and 10 illustrate the number of operational districts and special training centres in major states under NCLP as of 31 March 2021. Under NCLP, children aged 9–14 years are withdrawn from work and enrolled in NCLP's special training centres. These centres offer various facilities such as bridge education, vocational training, mid-day meals, stipend and healthcare to these children before they are mainstreamed into the formal education system. This initiative operates through District Project Societies established at the district level under the leadership of the collector/ district magistrate, who supervises the project's execution. To operate special training centres, funds are provided directly to District Project Societies, who then work with and distribute the money to Non-Governmental Organisations ('NGOs'), volunteer organisations, civil society organisations, etc.

Figure No. 9: Status of NCLP – operational districts as of 31 March 2021



Source: Press Information Bureau Website¹⁶

Figure No. 10: Status of NCLP – special training centres operational as of 31 March 2021

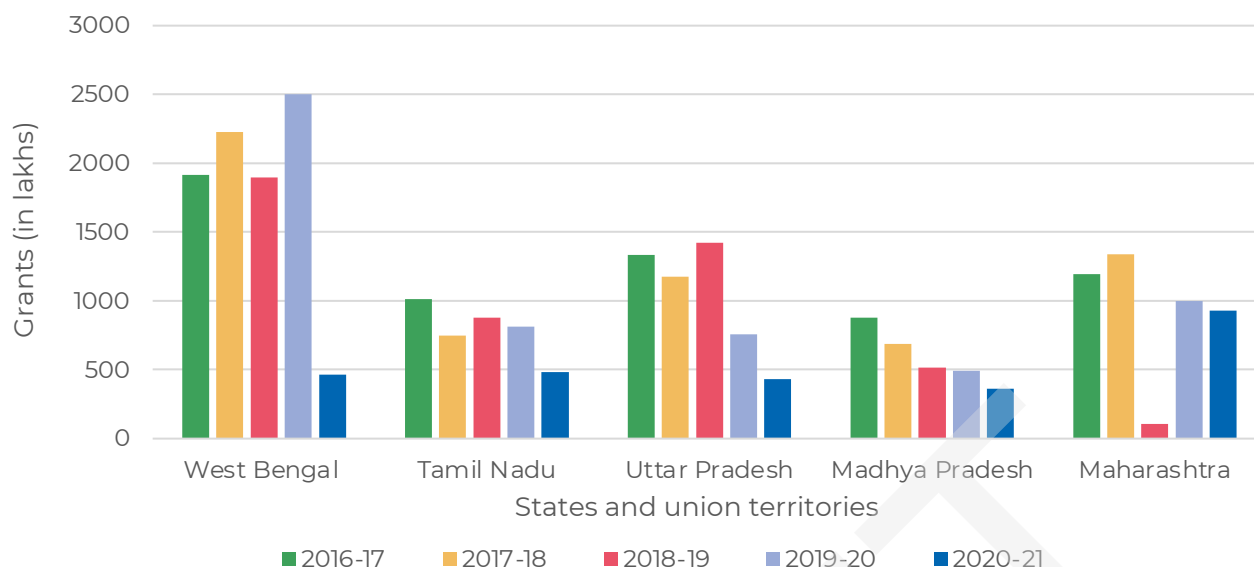


Source: Press Information Bureau Website¹⁷

¹⁶ [Ministry of Labour & Employment, Press Release Bureau \(21 March 2022\)](#)

¹⁷ [Ministry of Labour & Employment, Press Release Bureau \(21 March 2022\)](#)

Figure No. 11: Release of grants under the NCLP from 2016–17 to 2020–21 in top five states



Source: Press Information Bureau Website¹⁸

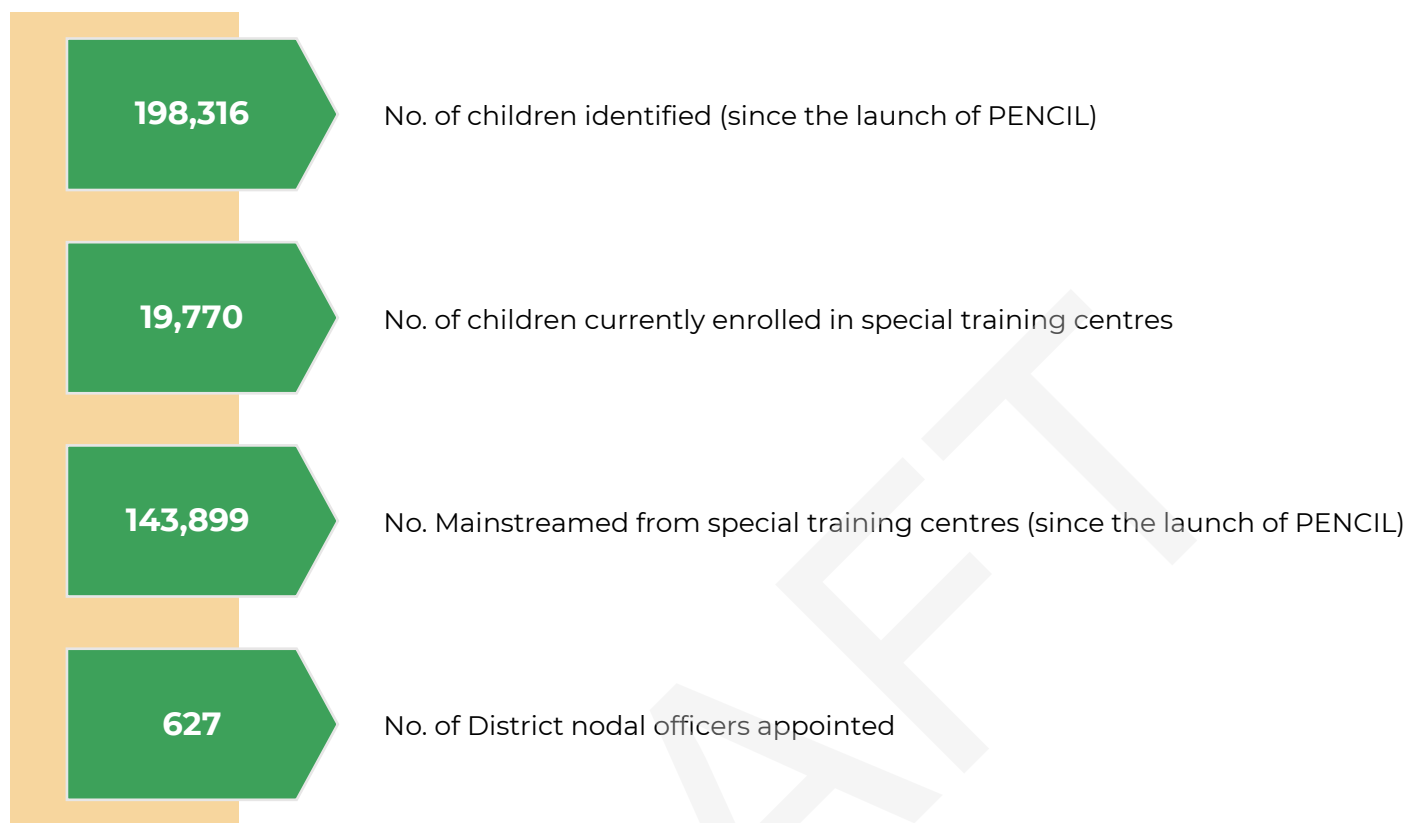
Figure No. 11 illustrates the top five states where NCLP funding have been awarded. Even though other states have also released the grants, their total amount is negligible.

The above data outline the grants released under the NCLP in various states across different fiscal years. In West Bengal, the grants increased from INR 1916.85 lakhs in 2016–17 to INR 2503.72 lakhs in 2019–20, demonstrating a fluctuating trend. However, there was a notable decrease in 2020–21 to INR 463.37 lakhs. This fluctuation raises questions about the consistency of funding and its impact on addressing child labour issues in the state.

Tamil Nadu experienced a decline in NCLP grants from INR 1015.07 lakhs in 2016–17 to 482 lakhs in 2020–21. This downward trend suggests potential challenges in sustaining initiatives to combat child labour in the state. Uttar Pradesh witnessed a similar decrease in grants over the years, from INR 1333.25 lakhs in 2016–17 to INR 433.83 lakhs in 2020–21. The diminishing financial support might hinder the effectiveness of anti-child labour programmes in the state. Madhya Pradesh faced a consistent reduction in grants, indicating a decreasing focus on NCLP efforts. The grants declined from INR 878.68 lakhs in 2016–17 to INR 363.41 lakhs in 2020–21, raising concerns about the state's ability to combat child labour effectively. In Maharashtra, while there was a surge in grants from INR 1192.54 lakhs in 2016–17 to INR 1338.84 lakhs in 2017–18, there was a substantial drop to INR 106.19 lakhs in 2018–19. This pattern emphasises the need for sustained financial commitment to anti-child labour initiatives. Overall, the analysis suggests varying levels of financial support across states and years, with some witnessing declines that may impact the efficacy of efforts to combat child labour. Consistent funding and strategic allocation are crucial for addressing and eradicating child labour effectively.

¹⁸ [Ministry of Labour & Employment, Press Release Bureau \(21 March 2022\)](#)

Figure No. 12 : Status of children, special training centres and district nodal officers under the PENCIL Portal (as on 14 March 2024)



Source: PENCIL Portal¹⁹

¹⁹ [Dashboard, Platform for Effective Enforcement for No Child Labour](#)

Opportunities and Challenges

Addressing the diverse needs of social security and welfare initiatives women workers and elimination of child labour involve navigating various opportunities and challenges. Some of the opportunities and challenges are illustrated below.

Target Group: Women Workers

Particular	Challenges	Opportunities
Maternity benefits for the unorganised sector	A significant number of women workers in unorganised sectors, such as those working as household servants, hotel industry daily workers, etc., do not have access to maternity benefits, which further intensifies the issue, leaving numerous women without proper support during pregnancy and childbirth.	To support women workers in the unorganised sector during pregnancy and childbirth, certain state Governments across India, along with respective stakeholders, have implemented specialised programmes for improving maternal and child health, such as organising women health camps, women health programmes, etc. to provide preventive healthcare services, screening for diseases and health education relating to nutrition, family planning and menstrual hygiene. However, nationwide implementation of the same is required.
Payment of maternity benefits: moving from liability-based model to a funds-based model	With the enhancement of paid maternity leaves vide the Maternity Benefit Amendment Act, 2017, employers are currently required to incur additional and enhanced cost for women workers under maternity leave. This may result in decreased employment opportunities for women workers, as the maternity benefits serve to deter employers from employing women workers, ultimately lowering the FLFPR.	Possibility of setting up a fund/ trust in line with the gratuity fund can be explored in consultation with employers. The same may boost the confidence of employers to employ women workers, leading to higher FLFPR.
Ensuring access to sanitation facilities	Public spaces and certain workplaces in have inadequate or poorly maintained sanitation facilities, which lead to problems such as a lack of privacy, discomfort and safety concerns for women workers.	Although the Government has taken legislative measures to enhance the sanitation facilities for women worker at the workplace, however, effective monitoring of these legislative measures in rural areas and certain workplaces in urban areas is required.
Access to healthcare for women workers in remote areas	Providing healthcare support for women workers in remote areas is challenging due to job insecurity, financial constraints, limited awareness of Government schemes, low accessibility of healthcare facilities in remote areas and societal norms that discourage seeking medical care, especially related to reproductive health.	To address these challenges, the Government, along with other stakeholders, may formulate policies for healthcare of women workers that are aimed at enhancing affordability, accessibility and awareness in healthcare delivery in remote areas.

Target Group- Child Labour

Particular	Challenges	Opportunities
Awareness initiatives for the prevention of child labour	As individuals migrate from rural to urban areas in pursuit of employment, a higher probability of child exploitation is likely in urban areas. As a result, urban areas, with their complex supply networks and informal industries, frequently mask instances of child labour.	Raising awareness about child labour protection is essential, particularly in urban areas where the risk of exploitation is higher. Addressing this challenge requires dedicated awareness campaigns to educate communities, parents, employers and local Governments about the legal and ethical dimensions of child labour.
Expansion of the Anganwadi centres	There are insufficient number of Anganwadi centres at the district level across India, leading to a scarcity of space that results in inadequate admission of poor children.	Establishing more Anganwadi centers for children would make such centers more accessible, and thus support the generation of more employment opportunities for women and better upbringing of children. It will also result in poverty reduction, prompting the families to educate the children, and indirectly alleviate the conditions for child labour.

Cross-cutting Themes

The cross-cutting themes play a pivotal role in addressing the needs of women workers and elimination of child labour. These themes cover key aspects such as violence prevention, ensuring general well-being, promoting awareness of legal rights and fostering capacity building. By focusing on these elements, the Government aims to create a comprehensive approach that addresses the unique challenges faced by women in the workforce and help in elimination of child labour from the workforce.

Cross-cutting themes	Particular	Goal
 Violence Prevention	The POSH Act provides safety measures concerning sexual harassment at workplaces for women workers. Child Labour (Prohibition and Regulation) Act, 1986; Child Labour (Prohibition and Regulation) Amendment Act, 2016; and CHILDLINE 1098 provide for the elimination of forced child labour²⁰.	Protection and safety of women workers and elimination of child labour
 General Well-Being	Various legal provisions such as the Factories Act, 1948; Mines Act, 1952; Mines Rules, 1955; Beedi and Cigar Workers (Conditions of Employment Act), 1966; Plantation Labour Act, 1951; Buildings and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996; Inter-State Migrant Workmen (Regulation of Employment And Conditions Of Service) Act, 1979; Maternity Benefit Act, 1961; and Maternity Benefit (Amendment) Act, 2017, mandate safety and welfare measures to be implemented by employers for the protection of women at their workplace and elimination of child labour.	Health care and welfare measures for protection of women and elimination of child labour.
 General Awareness about their Legal Rights	The Ministry of Labour and Employment²¹ administers schemes that provide grant-in-aid to NGOs and voluntary organisations for the rehabilitation of working children and educating working women about their legal rights and responsibilities. The NCLP scheme²² has been designed to focus on the rehabilitation of children working in hazardous occupations, while the PENCIL portal²³ connects the central Government to state Governments to achieve the objective of a child labour-free society.	Protection of legal rights of working women and children.
 Capacity Building	To enhance the employability of female workers, the Government provides training to them through a network of national and regional vocational training institutes. These initiatives have transformed the lives of various women by empowering them with valuable skills, leading to improved and secured livelihoods.²⁴	Skill development for needy women workers.

²⁰ [Dashboard, Childline India](#)

²¹ [Ministry of Labour and Employment, Grant in Aid on Child and Women Labour](#)

²² [Dashboard, Ministry of Labour and Employment](#)

²³ [Dashboard, Platform for Effective Enforcement for No Child Labour](#)

²⁴ [Ministry of Women and Child Development, Press Release Bureau \(01 April 2022\)](#)

Government Interventions

Social Security and Welfare Initiatives for Women Workers

To provide social security benefits and improve the working conditions of women in the workplace, the Ministry of Labour and Employment and the Ministry of Women and Child Development have implemented several significant initiatives. Some key initiatives are mentioned below.

1. Central Government Regulations:

POSH Act

- This Act aims to protect women from sexual harassment at work and prevent and redress complaints of sexual harassment.
- The definition of 'employee' under this Act encompasses all women employees, irrespective of their employment status (regular, temporary, contractual, ad hoc, daily wage, apprentices or interns) and even those employed without the knowledge of the principal employer. This ensures that any form of sexual harassment can be reported and addressed.
- This Act mandates the formation of an Internal Complaints Committee by employers within their organisation to address complaints of sexual harassment.
- Employers are also required to take preventive measures against sexual harassment, ensuring that victims are not subjected to further victimisation or discrimination.
- This Act states that employers must provide necessary support and assistance to the complainant and make arrangements for her work in case of transfers.

Maternity Benefit Act, 1961 ('1961 Act') and the Maternity Benefit (Amendment) Act, 2017 ('2017 Act')

- ~~The 1961 Act and the 2017 Act~~ This Act seek to regulate the employment of women in certain establishments for certain periods before and after childbirth and to provide for maternity and other related benefits.
- ~~Under the 1961 Act, every woman who has delivered a child, shall be entitled to 2 nursing breaks until the child attains the age of 15 months.~~
- ~~The maternity leave which was originally set at 12 weeks under the 1961 Act, was enhanced to 26 weeks by way of the 2017 Act.~~
- ~~The 2017 Act introduced 12 weeks maternity leave to commissioning mothers and every woman who adopts a child below the age of 3 months.~~
- ~~The 2017~~ This Act introduces a provision allowing an employer to grant a woman the option to work from home, based on the nature of work assigned to the woman.
- ~~The 2017~~ This Act provides that every establishment with 50 or more employees shall provide crèche facilities within a prescribed distance.

Equal Remuneration Act, 1976

- This Act provides for the payment of equal remuneration to men and women workers and for the prevention of sex-based discrimination against women in employment matters.

Factories Act, 1948

- This Act prohibits women from working with machinery in motion or in any case whatsoever.
- This Act empowers the state Government to prohibit the employment of women in dangerous operations.
- This Act prohibits the employment of women in tasks involving pressing cotton when a cotton-opener is at work.
- This Act authorises the appropriate Governments to set the maximum load limit that women can lift.
- This Act states that no woman shall be required or allowed to work in any factory except between the hours of 6 am and 7pm.
- This Act provides provisions for separate latrines and urinals for women workers.
- This Act states that any factory employing 30 or more women workers is required to provide crèche facilities for children aged below six years of the women workers.

Mines Act, 1952

- This Act prohibits the employment of women at any above-ground mine except between 6.00 am and 7.00 pm.
- It prohibits the employment of women in any part of a mine that is below ground.
- This Act mandates separate latrines and urinals for women workers.

Beedi and Cigar Workers (Conditions of Employment) Act, 1966

- This Act stipulates that no woman will be required or allowed to work in any industrial premise except between 6am and 7pm.
- This Act states that, in any industrial premises wherein more than 30 women workers are ordinarily employed, a suitable room or rooms will be provided and maintained for the use of children aged under six years of such women workers.

Building and Other Construction Workers (Regulation of Employment and Conditions of Service) Act, 1996

- This Act provides for maternity benefit to women beneficiaries of the Welfare Fund.
- This Act states that in any place wherein more than 50 women building workers are ordinarily employed, a suitable room or rooms will be provided and maintained for the use of children aged under six years of such women workers.

Contract Labour (Regulation and Abolition) Act, 1970

- This Act provides provisions for separate latrines, urinals and washing facilities for women workers.

Inter-State Migrant Workmen (Regulation of Employment and Conditions of Service) Act, 1979

- This Act provides provisions for separate latrines, urinals and washing facilities for men and women workers.
- This Act states that, in every establishment where 20 or more workers are ordinarily employed as migrant workers and in which employment of migrant workers is likely to continue for three months or more, the contractor will provide and maintain two rooms of reasonable dimensions for the use of their children aged under six years.

Plantations Labour Act, 1951

- This Act provides provisions for separate latrines and urinals for women workers.
- This Act states that in every plantation wherein 50 or more women workers are employed or were employed on any day of the preceding 12 months, the employer should provide and maintain suitable rooms for the use of children aged under six years of such women workers.

2. Schemes by the Ministry of Labour and Employment and the Ministry of Women and Child Development:



The Scheme for Working Women Hostel, implemented by the **Ministry of Women and Child Development** during 1972–2023, aims to provide accommodation for working women, with daycare facilities for their children, wherever possible, in urban, semi-urban and even rural areas where employment opportunities for women exist



The Ministry of Labour and Employment implements a **Grant-in-aid Scheme for the Welfare of Women Labour**. This scheme, in operation since 1981–82, is administered through voluntary organisations that receive grant-in-aid to educate working women about their legal rights



The Ministry of Women and Child Development implemented the **National Crèche Scheme for the Children of Working Mothers** in 2017 as a centrally sponsored scheme through states and union territories to provide daycare facilities to children (aged six months to six years) of working mothers

Elimination of Child Labour

To eliminate child labour from the country, the Ministry of Labour and Employment and the Ministry of Women and Child Development have taken various measures. Some of the measures are mentioned below:



NCLP

This central scheme for the rehabilitation of child labour was established by the Ministry of Labour and Employment.



PENCIL

This online portal was developed to enforce legislative provisions and effectively implement the NCLP. The portal contains a Complaint Corner and a Child Tracking System.



Child and Adolescent Labour Rehabilitation Fund

The Government has made a provision in the Child Labour (Prohibition and Regulation) Amendment Act, 2016, to constitute a Child and Adolescent Labour Rehabilitation Fund at the district level for children's welfare and education.



Childline India 1098

CHILDLINE 1098 is a phone number that spells hope for millions of children across India. It is a 24-hour a day, 365 days a year, free, emergency phone service for children in need of aid and assistance.

**Mines Act, 1952**

This Act prohibits employment of children below the age of 18 years in mines.

**Factories Act, 1948**

This Act prohibits employment of children below the age of 14 years in factories.

**Child and Adolescent Labour (Prohibition and Regulation) Act, 1986 and Child Labour (Prohibition and Regulation) Amendment Act, 2016**

This Act completely prohibits the employment of children aged below 14 years in all occupations and processes.

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Social Security and Welfare Initiatives for Women Workers

Protection of Women Worker

Prevention of Sexual Harassment of Women in the Workplace

Under the POSH Act, the Government may include a provision to extend the period of filling the complaint from 3 to a minimum of 6 months, allowing more time for victims to come forward. Reference may be taken from the approach adopted by Australian Human Rights Commission under the federal Sex Discrimination Act 1984, wherein the time limit for filling the sexual harassment complaint is 24 months.²⁵

Maternity Benefits for Women Workers

- Governments in consultation with employers and workers may consider developing a policy of paternal leaves for both parents instead of maternal leave, taking inspiration from the Countries like Sweden, which offers 480 days of parental leave for both parents, with each parent entitled to 240 days. During this leave, parents receive 80% of their regular wages.²⁶ This will help the new parents to share responsibilities.
- Governments in consultation with employers may look into the prospect of setting up a fund-for-payment for the crèche facility. State Governments may consider establishing fully Government-funded creche facilities for unorganised sector as initiated by the Haryana²⁷. There are other private sector models that employ a shared responsibility structure. These models can be tailored to the specific employment context.
- Governments in consultation with the organisations may formulate a policy providing flexible work environment (hybrid models) for women employees for a period up to one year after the maternity leaves are over. For example, ICICI bank's iWork@Home policy helps women pursue their careers successfully while attending to the needs of their families (for instance, maternity and child support) by working from home.²⁸ Mahindra & Mahindra also has taken a step forward by introducing a five-year maternity policy (including both pre-birth and post-birth support)²⁹.
- The Government may explore the possibility of creating a fund-based model instead of a liability model for payment of maternity benefits. The same may be undertaken in consultation with the employers/unions.



Sanitation Facilities for Women at Workplaces and Public Spaces

- Sanitary facilities should be improved by ensuring each establishment has proper sanitation, including sanitary napkins, lidded dustbins in lavatories and proper disposal mechanisms of the sanitary pads. Telangana and Maharashtra have implemented an initiative by adopting adequate measures to provide sanitary napkins in the workplace and have set up disposal bins with lids in women's toilet.



Promotion of Women's Employment

- Appropriate job search assistance for women must be provided for educated women in rural areas. In National Career Service Portal, a specific segment for promotion of women's employment must be provided.
- Participation of women in IT sectors should be promoted. Skill development programmes need to be upgraded to reflect current job requirements, such as inclusion of courses on artificial intelligence, coding, machine learning and new upcoming technical domains. Setting up up-to-date training clusters for women would help in increasing the FLFPR.

²⁵ [Sexual Harassment, Australia, Lodging Your Sexual Harassment Claim Late](#)

²⁶ [Nordic Benefit, Parental Benefit in Sweden](#)

²⁷ [Haryana State Creche Policy- 2022](#)

²⁸ [ICICI Bank, News Room](#)

²⁹ [Mahindra, Enriching Motherhood with our 5-year Maternity Policy](#)



Elimination of Child Labour

- programmes aimed at reintegrating poor children between the ages 12 to 18, who tend to leave education due to financial constraints, back into the educational system or providing them with vocational training for better job prospects. This approach aligns with global efforts, such as Tunisia's Second Chance programme, which focuses on reintegrating school dropouts aged 12 to 18 years back into the educational system or providing them with vocational training.³⁰
- Child labour is a persistent problem in the unorganised sectors, which can be addressed through the implementation of stringent penalties for those who employ child labour in factories and mines, as well as through awareness-raising campaigns organised by state Governments, as these are steps in the right direction in terms of discouraging children from being sent to work. Further, it has been observed that large corporations have engaged initiatives in Corporate Social Responsibility ('CSR') in order to promote empowerment for the abolition of child labour.
- CHILDLINE 1098, an initiative created by the central Government, is a 24 hours a day, 365 days a year phone service for children in need of aid and assistance. However, to effectively implement this type of initiative, all state Governments should consider implementing similar services within their jurisdictions.³¹

³⁰ [Bureau of International Labor Affairs \(U.S.\), Child Labor and Forced Labor Reports](#)

³¹ [Dashboard, Childline India](#)

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